

STATE OF NEW YORK

86--B

2025-2026 Regular Sessions

IN ASSEMBLY

(Prefiled)

January 8, 2025

Introduced by M. of A. DINOWITZ, ROSENTHAL, COOK, BENEDETTO, DAVILA, BICHOTTE HERMELYN, WALKER -- Multi-Sponsored by -- M. of A. GLICK -- read once and referred to the Committee on Housing -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- again reported from said committee with amendments, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the administrative code of the city of New York, the emergency tenant protection act of nineteen seventy-four and the emergency housing rent control law, in relation to surcharges for the installation or use of certain appliances in housing accommodations subject to rent control or rent stabilization

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The administrative code of the city of New York is amended
2 by adding a new section 26-416.1 to read as follows:

3 § 26-416.1 Surcharges for tenant-installed appliances. The imposition
4 of any surcharge for the installation or use of a tenant-installed
5 appliance is prohibited where the tenant pays for electric utility
6 service.

7 § 2. Section 26-512 of the administrative code of the city of New York
8 is amended by adding a new subdivision h to read as follows:

9 h. The imposition of any surcharge for the installation or use of a
10 tenant-installed appliance is prohibited where the tenant pays for elec-
11 tric utility service.

12 § 3. Section 6 of section 4 of chapter 576 of the laws of 1974,
13 constituting the emergency tenant protection act of nineteen seventy-
14 four, is amended by adding a new subdivision h to read as follows:

15 h. The imposition of any surcharge for the installation or use of a
16 tenant-installed appliance is prohibited where the tenant pays for elec-
17 tric utility service.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 § 4. Subdivision 4 of section 4 of chapter 274 of the laws of 1946,
2 constituting the emergency housing rent control law, is amended by
3 adding a new paragraph (h) to read as follows:

4 (h) The imposition of any surcharge for the installation or use of a
5 tenant-installed appliance is prohibited where the tenant pays for elec-
6 tric utility service.

7 § 5. This act shall take effect immediately; provided that section
8 26-416.1 of the city rent and rehabilitation law as added by section one
9 of this act shall remain in full force and effect only as long as the
10 public emergency requiring the regulation and control of residential
11 rents and evictions continues, as provided in subdivision 3 of section 1
12 of the local emergency housing rent control act; and provided, further,
13 that section 26-512 of the administrative code of the city of New York
14 made by section two of this act shall expire on the same date as such
15 section expires and shall not affect the expiration of such law as
16 provided under section 26-520 of such law.